



Appeal Decision

Site visit made on 18 August 2026

by **P Barton BA (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 07 September 2026

Appeal Ref: 6010763

The Old Rectory, Mill Lane, Gratwich, Staffordshire ST14 8SE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) (the Act) against a refusal to grant planning permission.
 - The appeal is made by Mr Miles Brough against the decision of East Staffordshire Borough Council.
 - The application Ref is P/2024/00727.
 - The development proposed is an agricultural building.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. A new version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. The policy emphasis of the parts of the Framework most relevant to this appeal have not changed. As a result, I have not sought comments on the new version of the Framework, and I am satisfied that no party's interests have been prejudiced by taking this approach.
3. The Council's statement refers to concern surrounding the visual impact of the building's siting on the landscape. However, this was not included within the Council's decision notice. I have had regard to the parties' submission in establishing the main issues, which I have set out below:

Main Issues

4. The main issues are:
 - whether the proposed development would accord with the strategy of the Development Plan for new development in the open countryside;
 - whether the proposed development would make adequate provision for Biodiversity Net Gain; and
 - the effect of the proposed development on the character and appearance of the area.

Reasons

New development in the open countryside

5. Policy SP8 of the East Staffordshire Borough Council Local Plan 2012-2031 (LP) requires, amongst other things, development outside settlement boundaries to be essential to the support and viability of an existing lawful business or the creation

of a new business appropriate in the countryside in terms of type of operation, size and impact and supported by relevant justification for a rural location.

6. There is no dispute between the main parties that there is a need for an agricultural building in relation to a hay, haylage and silage agricultural business. The area of disagreement centres on whether the proposed building is suitably designed for its intended purposes.
7. The proposal would be a U-shaped building with a main linear section to be used for the dry storage of hay and haylage bales. In particular, the storage of hay needs to be undercover to prevent it from becoming damp and mouldy, which would result in it being unsuitable for feeding to livestock. Three sets of timber barn doors would serve this section of the building. However, due to the overall restrictive width and height of these doors as well as the constrained nature of the internal floorspace for manoeuvring, I am not persuaded that it would be conducive to a reasonably efficient and practical arrangement for the storage of hay and haylage using many pieces of modern machinery associated with such an agricultural use. This would also be compounded by the real potential that the space allocated for the storage of hay may not be sufficient for the area of land given to its production, which could result in excessive hay storage in the building and even less space for manoeuvring.
8. When storing hay, there needs to be a sufficient level of ventilation to prevent the hay from over-heating. The appeal building would have horizontal weatherboard cladding to its walls and reclaimed slates to its roof resulting in a predominantly enclosed structure. Although there would be open eaves roof vents, I am not convinced that the proposed design would enable adequate air flow to make the building fit for its intended purpose. Changes to accommodate a greater level of ventilation has the potential to significantly alter the design of the building. In the absence of such details before me to address this matter, it is unclear whether it could be secured by a planning condition.
9. Smaller wings would be positioned perpendicular to the main storage section, which includes allocated areas for pieces of machinery that the appellant has identified will be used. I saw some of these stored externally on my site visit. However, the Council's countryside consultant asserts that a noticeably greater amount of machinery will be needed if hay and silage is to be made and, as such, the floorspace for the machinery storage is considerably less than what is likely to be required. It has not been substantiated that the amount of machinery presented by the appellant would be sufficient for the agricultural business. On this basis the proposed building is not adequate for its intended purpose in terms of providing secure storage for the machinery, and protection from the elements.
10. Moreover, the height, width and positioning of the storage bays in the building, would limit the type and size of machinery that could utilise this space, as well as the ease of manoeuvring these into place. This thereby limits its useability by different and larger pieces of modern agricultural machinery, including tractors with cabs.
11. I appreciate that the building has been designed to reflect traditional timber barn construction, as well as the scale of farming the appellant intends to carry out, accommodating an amount of machinery, including a new tractor that is claimed would fit within its appointed bay, and the recent acquisition of land. However, this

does not negate the requirement of LP Policy DP1 for the development to be compliant with the Council's East Staffordshire Design Guide Supplementary Planning Document, which in turn demands it is fit for purpose and meets existing and future needs.

12. In conclusion, on the basis of the evidence before me, I am not satisfied that the form of the proposed building would adequately meet the practical functions and efficiency requirements of its intended purposes in addition to broader modern farming practices. Furthermore, it would fall short in accommodating the likely amount of hay produced and machinery required, as well as reasonable future needs involving new modern machinery. Consequently, the proposed building would not be essential to the support and viability of the agricultural business.
13. For the above reasons, the proposed development would not accord with the strategy of the Development Plan for new development in the open countryside, contrary to LP Policies SP8 and DP1 (insofar as they relate to this main issue). It also conflicts with LP Policy SP14, which amongst other things, supports farm diversification proposals where they can make a long-term contribution to sustaining the agricultural enterprise as a whole and where it is consistent with its rural location in terms of use, setting and scale.

Biodiversity Net Gain (BNG)

14. Schedule 7A of the Act introduced a statutory framework for BNG and, with some exceptions, every grant of planning permission is deemed to have been granted subject to the Biodiversity Gain Condition (BGC). This requires that at least a 10% increase in biodiversity value is met. It follows that the proposal is subject to the general BGC, as set out in the Act.
15. The submitted Biodiversity Impact Assessment identifies that the majority of the site was comprised of poor-semi-improved grassland, resulting in a net loss of 0.66 habitat units. It also indicates that the overseeding with a suitable wildflower mix to 7500sqm of adjacent poor semi-improved grassland would be sufficient to achieve the required BNG.
16. I am mindful that the Planning Practice Guidance (PPG) states that it would generally be inappropriate for decision makers, when determining a planning application for a development subject to BNG, to refuse an application on the grounds that the BNG objective will not be met. However, the PPG continues that decision makers may need to consider more broadly whether the BNG condition is capable of being successfully discharged with matters for consideration including the appropriate balance expected between on-site gains, off-site gains and the use of statutory biodiversity credits for the development, taking into account of the Biodiversity Gain Hierarchy.
17. There is no policy or statutory requirement for me to assess or settle issues such as the quality and extent of the minimum information provided, or the location of off-site gains at the appeal stage. These are matters to be resolved through the discharge of the BGC.
18. I note the Council's concerns surrounding the level of information on this matter. However, due to the size of the land within the appellant's control that is not subject to the development, I am content that there would be sufficient space to

accommodate the required 10% in biodiversity. This would be a statutory requirement for later consideration should permission be granted.

19. To conclude, sufficient information has been provided at this stage that the proposal would make adequate provision for BNG. This would accord with LP Policy SP29, which seeks to, inter alia, protect, maintain and enhance the biodiversity of the Borough.

Character and appearance

20. The appeal building would be positioned on an open and slightly elevated position to Mill Lane. It would be seen as part of an existing cluster of buildings on the appeal site. It would also be near to the main working land parcel. I observed that there were a range of materials used on buildings in the area and those proposed here would be broadly consistent with those found in the wider locality. Moreover, due to its modest height as well as its distance set back from the highway behind established vegetation, it would be unlikely to draw attention and not appear as a dominant feature or an incongruous addition in the landscape.
21. As such, the proposed development would have an acceptable effect on the character and appearance of the area, in accordance with LP Policies SP8 and DP1 (insofar as they relate to this main issue). This includes the requirement of the siting of a proposed development to be compatible with the character of the surrounding area and the design to relate well to the site and its setting.

Other Matters

22. Whilst the building would incorporate the use of renewable materials and sustainable construction methods, this does not outweigh my concerns about its suitability for the agricultural business. Furthermore, alleged differences in the appeal building's appearance to more modern agricultural buildings have not been a determinative factor in this case.

Planning Balance and Conclusion

23. There is consistency between LP Policies SP8, DP1 and SP14, and policies E2 and E4 of the Framework that supports the sustainable growth of businesses in rural areas. As a result of the functional shortcomings detailed above with the proposed building, it would not constitute a well-designed new building or maintain and enhance farm viability and sustainability. I attribute significant weight to this conflict. Consequently, the benefits of the proposal would be substantially outweighed by the adverse effects, when assessed against the national-decision-making policies in this Framework, and the presumption in favour of sustainable development set out in policy S5 of the Framework does not apply.
24. The proposed development conflicts with the development plan as a whole and the material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal is dismissed.

P Barton

INSPECTOR